

CHAPTER 35.

An Act to provide for the better protection of trout in Scotland, and for other purposes relating thereto. [28th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Section one of the Freshwater Fish (Scotland) Act, 1902, shall be amended by the substitution of the seventh day of October and the fourteenth day of March for the fifteenth day of October and the twenty-eighth day of February respectively. Annual close time for trout. 2 Edw. 7. c. 29.

2.—(1) It shall not be lawful to purchase, sell, expose or consign for sale, or export or consign for exportation— Size limit for selling trout.

(a) trout under eight inches in length; or

(b) any trout at any time between the first day of September and the thirty-first day of March, both inclusive.

(2) Any person who contravenes this section shall be guilty of an offence and liable on summary conviction thereof to a penalty not exceeding five pounds.

3. In this Act "trout" shall mean all trout other than rainbow trout or migratory trout known as sea-trout, salmon-trout, and bull trout, or by other local name. Interpretation.

4. Nothing in this Act shall apply to live trout sold or disposed of for the purpose of stocking any river, loch, or water whatsoever, or of artificial propagation. Saving.

5. Section one of the Freshwater Fish (Scotland) Act, 1902, shall be repealed to the following extent, that is to say: the words "or (c) expose common trout for sale;" the words "or expose for sale;" and from the words "(b) sell or expose" to the words "purposes of food." Repeal in part of s. 1 of 2 Edw. 7. c. 29.

Saving
Salmon
Fisheries
Act.

6. Nothing herein contained shall affect any Act of Parliament, general or local, passed for the preservation of the salmon fisheries in Scotland, or in relation to the fishing of salmon or fish of the salmon kind in Scotland.

Short title,
construction
and extent.

7.—(1) This Act may be cited for all purposes as the Trout (Scotland) Act, 1933, and the Trout (Scotland) Acts, 1845 to 1902, and this Act may be cited together as the Trout (Scotland) Acts, 1845 to 1933.

(2) This Act shall extend only to Scotland.

CHAPTER 36.

An Act to abolish grand juries and amend the law as to the presentment of indictments; to provide for the summary determination of questions as to liability for death duties; to make provision for alternative procedure for the recovery of Crown debts and to enable proceedings by the Crown to be instituted in county courts in appropriate cases; to amend the procedure as to certain prerogative writs and as to trials by jury in the High Court; to amend the law as to the payment of costs by and to the Crown; to provide for the further delegation of the jurisdiction of the Master in Lunacy; and for purposes connected with the matters aforesaid.

[28th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Abolition
of grand
juries.

1.—(1) Subject to the provisions of this section grand juries are hereby abolished, but where a bill of indictment has been signed in accordance with the provisions of this Act, the indictment shall be proceeded with in the same manner as it would have been proceeded with before the commencement of this Act